

U.P. Industrial Peace (Timely Payment of Wages) Rules, 1981

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State of Uttar Pradesh - Act

U.P. Industrial Peace (Timely Payment of Wages) Rules, 1981

UTTAR PRADESH

India

U.P. Industrial Peace (Timely Payment of Wages) Rules, 1981

Rule U-P-INDUSTRIAL-PEACE-TIMELY-PAYMENT-OF-WAGES-RULES-1981 of 1981

Published on 30 July 1981

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U.P. Industrial Peace (Timely Payment of Wages) Rules, 1981

Published vide Notification No. 2476(HI)/36-2-1021 (A) (SM)-77, dated 30th July, 1981, published in U.P. Gazette, Extraordinary, dated 30th 7, 1981

In exercise of the powers under Section 8 of the Uttar Pradesh Industrial Peace (Timely Payment of Wages) Act, 1978 (U.P. Act No. 5 of 1978), the Government is pleased to make the following Rules :

1.

Short title, extent and commencement.

- (i) These Rules may be called the Uttar Pradesh Industrial Peace (Timely Payment of Wages) Rules, 1981.

(ii)

They shall extend to whole of Uttar Pradesh.

(ii)

They shall come into force with effect from the date of their publication in the official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires :

(a)

'Act' means the Uttar Pradesh Industrial Peace (Timely Payment of Wages) Act, 1978:

(b)

'Section' means a section of the Act:

(c)

'Form' means a form appended to these Rules;

(d)

Other words and expressions used in these rules and not defined shall have the meanings assigned to them in the Act.

3.

Nomination of occupier.

- Every industrial establishment to which the Act applies shall intimate to the Labour Commissioner theme of its occupier in Form I by January 15th every year. In case, there is a change in the name of the occupier of the industrial establishment, the employer shall intimate within a week to the Labour Commissioner the name of new occupier in place of the out-going occupier.

4.

Ascertainment of wage bill.

(1)

On receipt of information about the default of payment of wages exceeding-fifty thousand rupees in an industrial establishment, the Labour Commissioner shall serve a notice on its occupier in Form II for the purpose of ascertaining the wage bill in respect of which default in payment has been committed. The Labour Commissioner may also require the occupier to furnish to him the information in Form III and to produce such other information and material he may consider necessary for the above purpose.

(2)

The Labour Commissioner shall forward to the Collector a certificate in Form LV under his signature specifying the amount of wages due from the industrial establishment concerned.

(3)

The amount realised by the Collector and placed at the disposal of the Labour Commissioner shall be disbursed by the Labour Commissioner himself or he may cause it to be disbursed through the occupier of the concerned industrial establishment among the workmen entitled thereto. The account of the amount, so disbursed among the workmen, shall be maintained if Form V by the Labour Commissioner or the occupier of the concerned industrial establishment, as the case may be, and, where the amount is disbursed by the Labour Commissioner, himself, a copy of the same shall be forwarded to the occupier of the industrial establishment concerned.

Form I

[See Section 2 (c) and Rule 3]

Nomination form of Occupier of an Industrial Establishment

From,

(Particulars of the employer of the industrial establishment)

To

The.....

.....

Date

Sir,

I hereby intimate that Sri(State here the name, address and designation of the occupier), is the occupier of the industrial establishment

(State here the name and full address of the industrial establishment), and his consent has been taken in this behalf.

Yours

faithfully,

Place :

Signature

Date :

Name

Designation

Seal

Form II

[See Rule 4 (1)]

Notice

To

.....

.....

.....Occupier

Whereas information has been received that you are in default of payment of wages for the period to and that the wage bill in respect thereof exceeds fifty thousand rupees;

And, whereas, it is necessary in the interest of maintenance of industrial peace to ensure timely payment of wages to the workmen of your establishment..... (here state the name of the industrial establishment);

Now, therefore, you are hereby required to appear before the undersigned in person or through a duly authorised representative and to show cause on..... (date) why a certificate of recovery of the wages exceeding fifty thousand rupees may not be issued against you in accordance with Section 3 of the U.P. Industrial Peace (Timely Payment of Wages) Act, 1978 (U.P. Act No. 5 of 1978).

You are further required to furnish to the undersigned the information in Form 111 as appended to the U.P. Industrial Peace (Timely Payment of Wages) Rules 1981 on the aforesaid date.

Labour Commissioner

Form III

[See Rule 4 (I)]

1. Name of the industrial establishment

2. Period for which the wages are in default

3. Total No. of workmen who have not been paid wages, which they are entitled to

4. Total amount of wages are in default of workmen

5.

Details of wages in default :

Sl. No.

Name of the worker

Department

Ticket No.

Amount of wages not paid to him

Remarks

1

2

3

4

5

6

Form IV

[See Section 3 (1) and Rule 4 (2)]

Recovery Certificate

To

The Collector,

Whereas the occupier of the industrial establishment (name with full address) is in default of payment

of wages for the months of..... and the wage-bill in respect of which the occupier is in default amounts to Rs

And, whereas, I have satisfied myself about the amount of wages in default;

And, whereas, the amount mentioned herein is recoverable under Section 3 of the Uttar Pradesh Industrial Peace (Timely Payment of Wages) Act, 1978 (U.P. Act No. 5 of 1978), as arrears of land revenue;

I, therefore, in exercise of the powers conferred upon me under sub-section (1) of Section 3 of the said Act, issue this certificate under my signature for recovery of this amount from the occupier of the industrial establishment named above as arrears of land revenue besides recovery charges at rate 10 per cent as per provisions of sub-section (2) of Section 3 of the Act. The amount, so realised, shall be placed at my disposal for being disbursed among the workmen entitled thereto after deducting the recovery charges as per provisions of sub-section (3) of Section 3 of the Act.

Place :

Signature

Date :

Name

Designation

Form V

[See Rule 4 (3)]

Details of disbursement made to the workmen who are entitled thereto--

(1)

Name of the industrial establishment with full address

(2)

Total amount of the money realised and placed at the disposal

(3)

Total number of workmen entitled thereto

(4)

Period to which the amount realised relates

(5)

Details of disbursement :

Sl. No.

Name of the worker

Department

Ticket No.

Total amount of wages worker is entitled to

Amount disbursed to him

Remarks

1

2

3

4

5

6

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